

[*260] *the 13th section the majority of the charity trustees may, with the sanction of the charity commissioners, *sue*, as if they were the sole trustees.

7. **Trustees of charities.**—Where a numerous body are appointed trustees by the Court, as in cases of charity, the Court sometimes, for greater convenience, annexes to the order a direction that part of them shall form a *quorum*.

8. **Dividends and rents.**—If *stock* be standing in the names of several co-trustees, then, as they are joint tenants, and the Bank does not recognize the trust, any *one* of them may receive the *dividends*, though all must join in the sale of the *corpus*; and the Court itself has occasionally directed the dividends of stock, standing under its control, to be paid to one of several trustees (*a*). And in the case of Bank annuities standing to the credit of trustees of a charity, the Court to prevent the necessity of recurring applications on changes of trustees, made an order for payment of the dividends “to the trustees or any two of them, or to other the trustees for the time being or any two of them” (*b*), and in another case for payment to the “trustees for the time being or one of them” (*c*). Where there are co-trustees of *lands*, any one of them may receive the rents, though all must concur in a conveyance (*d*). But if there be two trustees, and one of them receives the rents and misapplies them, and the other trustee has notice of this, it is the duty of such other trustee to serve a notice on the tenants not to pay their rents to the defaulting trustee alone, and if he omit to do this or to take the necessary steps for insuring the safety of the rents, as against the defaulting trustee, he will himself become liable (*e*).

9. **Co-trustees should not sever in legal proceedings.**—As co-trustees are a joint body, the Court requires them, unless under special circumstances, to defend a suit jointly, and if

(*a*) *Re Coulson's Settlement*, 17 L. T. N. S. 27.

(*b*) *Milne v. Gilbert*, W. N. 1875, p. 128.

(*c*) *In re Foy's Trusts*, 33 L. T. N. S. 161; 23 W. R. 744.

(*d*) See *Townley v. Sherborne*,

Bridg. 35; *Williams v. Nixon*, 2 Beav. 472; *Gouldsworth v. Knight*, 11 M. & W. 337.

(*e*) *Gough v. Smith*, W. N. 1872, p. 18; reversed under a different state of circumstances, W. N. 1872, p. 66.